

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Angel Riddle	Team: Squad #05	CCRB Case #: 202302640	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 01/07/2023 1:55 PM	Location of Incident: Surf Avenue and West 28th Street	18 Mo. SOL 7/7/2024	Precinct: 60		
Date/Time CV Reported Wed, 03/29/2023 6:01 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 03/29/2023 6:01 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alex Guess	04762	951797	INT FIO PRG

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Khurram Zubair	24264	962891	NARCBBS
2. PO Peter Vitella	24204	968873	060 CONEY ISL
3. PO Toniann Longobardi	13893	967968	NARCBBS
4. PO Brendan Mcdaniel	05004	969963	060 PCT
5. PO Justin Carosella	14061	971858	060 PCT
6. DT3 Miguel Rodriguez	01839	942460	INT FIO PRG
7. PO Casey Martinez	13362	974311	060 PCT
8. PO Anthony Beale	18113	958301	060 PCT
9. PO Michael Parbhoo	10973	974413	060 PCT
10. PO Salvatore Loffredo	10744	969908	060 PCT
11. SGT Alan Ye	03354	940930	060 PCT
12. PO Vincent Scardino	16284	958059	PSA 1
13. PO Wreann Johnson	11096	964576	NARCBBS
14. SGT Miguel Henry	04492	945915	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alex Guess	Abuse: Sergeant Alex Guess threatened § 87(2)(b) with the use of force.	
B . SGT Alex Guess	Force: Sergeant Alex Guess used physical force against § 87(2)(b)	
C . SGT Alex Guess	Discourtesy: Sergeant Alex Guess spoke discourteously to § 87(2)(b)	
D . SGT Alex Guess	Off. Language: Sergeant Alex Guess made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)	

Case Summary

On March 29, 2023, an anonymous individual filed this complaint via the CCRB's website.

On January 7, 2023, at approximately 1:55 p.m., in the vicinity of Surf Avenue and West 28th Street in Brooklyn, Sergeant Alex Guess, assigned to the Criminal Intelligence Section and working as a Field Intelligence Officer in the 60th Precinct, was chasing the perpetrator of a robbery that took place earlier that same day, identified by the investigation as 17-year-old § 87(2)(b). While running behind § 87(2)(b), Sgt. Guess threatened to shoot § 87(2)(b). (**Allegation A: Abuse of Authority,** § 87(2)(g)) When he caught up with § 87(2)(b), Sgt. Guess put his knee into § 87(2)(b) midsection (**Allegation B: Force,** § 87(2)(g)). While handcuffing § 87(2)(b) on the ground, Sgt. Guess said to him, "The fuck you running from me for? You fucking fag" (**Allegation C: Discourtesy,** § 87(2)(g)). (**Allegation D: Offensive Language,** § 87(2)(g)) § 87(2)(b) was arrested for robbery in the third degree (BR01).

The investigation obtained BWC footage from all responding officers capturing the entirety of this incident (BR02-20, summarized at BR21-27). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Alex Guess threatened § 87(2)(b) with the use of force.

The NYPD crime complaint for this date (BR28) states that § 87(2)(b) was accused of committing a strong-arm robbery in which he stole the complainant's phone and purse before fleeing on foot. The robbery took place approximately 30 minutes before this incident and in close proximity to it. There was no allegation that § 87(2)(b) possessed or used a weapon during the robbery.

Sgt. Guess's BWC footage (BR07, beginning at 01:01) shows that while chasing § 87(2)(b), Sgt. Guess yelled out to him multiple times, "You're gonna get shot!"

The investigation was able to determine § 87(2)(b) identity using NYPD records but ultimately exhausted attempts to reach him. The anonymous complainant did not provide any identifying information that would have made it possible to get in contact with them or obtain their statement.

Sgt. Guess testified (BR29) that he ordered § 87(2)(b) to stop and § 87(2)(b) fled on foot. Sgt. Guess and his partner, Det. Miguel Rodriguez, began to chase him, at which point Sgt. Guess acknowledged yelling out, "You're gonna get shot," multiple times. Sgt. Guess testified that he made these comments to get § 87(2)(b) to stop running away. At no point during this incident did Sgt. Guess have any intention to shoot § 87(2)(b) or use his firearm. He emphasized that he did not observe § 87(2)(b) with any weapons or doing anything that would have made him a threat to human life. Other than bluffing to gain compliance from § 87(2)(b) and have him stop running, Sgt. Guess had no other reason to threaten § 87(2)(b) with his firearm.

Per Patrol Guide Procedure 221-01, deadly physical force against a person can be used only when necessary to protect officers and/or the public from imminent serious physical injury or death (BR30).

Sgt. Guess acknowledged that he did not believe that § 87(2)(b) was armed or that he was a threat to human life at the time he threatened him with the use of his firearm. § 87(2)(g)

§ 87(2)(g)

Allegation (B) Force: Sergeant Alex Guess used physical force against § 87(2)(b)

Allegation (C) Discourtesy: Sergeant Alex Guess spoke discourteously to § 87(2)(b)

Allegation (D) Offensive Language: Sergeant Alex Guess made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)

Police Officer Casey Martinez's BWC footage (BR08, beginning at 00:55) captures the moment that officers caught up to § 87(2)(b). As PO Martinez is catching up to § 87(2)(b), § 87(2)(b) trips and falls on the sidewalk. PO Martinez reaches him and puts a hand on his shoulder as he sits upright on the ground. At that same time, Sgt. Guess catches up to § 87(2)(b) and simultaneously stops and kneels in such a motion that his knee makes contact with § 87(2)(b)'s midsection. Sgt. Guess turns § 87(2)(b) over so that his hands can be placed behind his back and handcuffed. Sgt. Guess' BWC (BR07, beginning at 01:22) captures Sgt. Guess asking § 87(2)(b) "The fuck you running from me for? You fucking fag."

Sgt. Guess testified that he ran into § 87(2)(b) after § 87(2)(b) tripped, that his knee struck § 87(2)(b)'s shoulder, and that this was accidental due to the momentum he had from running. § 87(2)(b) was then on his side and Sgt. Guess turned him onto his stomach so that he could be placed in handcuffs. Sgt. Guess acknowledged that he called § 87(2)(b) a "fucking fag" when he caught up to him. Sgt. Guess acknowledged that this was unacceptable language to use with a civilian and explained that this phrase simply came out in the heat of the moment. Sgt. Guess had no intention of using this phrase to degrade anyone or as a slur based on perceived sexual orientation, but rather as a curse word due to the rush of adrenaline he had. Sgt. Guess prepared a TRI report in relation to this incident which was consistent with his testimony (BR31). He documented the contact his knee made with § 87(2)(b) on the TRI by choosing "foot strike" from the list of selectable uses of force.

Per Patrol Guide Procedure 221-01, force may be used when it is reasonable to place a person in custody or to prevent escape from custody granted that the application or use of force is reasonable under the circumstances (BR30).

Per Patrol Guide Procedure 200-02 (*in effect at the time of the incident*), officers pledge to "maintain a higher standard of integrity than is generally expected of others," and they are obligated to "render [their] services with courtesy and civility" (BR32). DAO-DCT Case No. 2013-10143 states that while officers are prohibited from using profanity while interacting with members of the public, this standard of conduct cannot be applied during stressful enforcement situations (BR33).

Administrative Guide Procedure 304-06 states that officers are prohibited from using discourteous or disrespectful remarks regarding another person's sexual orientation (BR34).

§ 87(2)(b) led the officers on a foot pursuit and only came to a stop because he tripped and fell, at which point Sgt. Guess reached him, knelt into him, and began trying to flip him over onto his stomach and to pull his hands behind his back. § 87(2)(g)

The video shows that Sgt. Guess's use of profanity and his use of "fag," a homophobic slur, was not in the context of emphasizing the urgency of an order. § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR35**).
- Sgt. Guess has been a member of the NYPD for 11 years and has been a subject in two prior CCRB complaints and ten allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- As the CCRB was unable to get in contact with § 87(2)(b) this complaint was not eligible for mediation.
- As of September 13, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR36**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 5

Investigator:	<u>Inv. Angel Riddle</u>	<u>Investigator Angel Riddle</u>	<u>October 26, 2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>October 26, 2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date